

		Here, Plaintiff requests leave to amend the FAC and there is the possibility that allegations may be made to support one or more of the causes of action. Therefore, the court will exercise its discretion and grant Plaintiff one final opportunity to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) Defendant shall give notice of this ruling.
3	Arguello vs. Jaguar Land Rover North America, LLC 30-2025-01521732	<u>Motion to Strike</u> Defendant Jaguar Land Rover North America, LLC's Motion to Strike is taken OFF CALENDAR pursuant to the Notice of Withdrawal of Defendant's Motion to Strike Complaint filed June 16, 2026. (See ROA #54.)
4	T. H. vs. AV Investment & Consultant Group, LLC 30-2024-01404661	<u>Motion to Consolidate</u> Defendants AV Investment & Consultant Group, LLC's; Andrew Vo's; and Ngoc Dung's Motion to Consolidate is CONTINUED to August 4, 2026 at 9:00 a.m. in Department N15. Defendants AV Investment & Consultant Group, LLC; Andrew Vo; and Ngoc Dung are ORDERED to file and serve supplemental motion papers that include the Declaration of Walter Emil Teague III, no later than July 10, 2026. Defendants AV Investment & Consultant Group, LLC; Andrew Vo; and Ngoc Dung are ORDERED to

	file this motion in <i>Tran Hung and Cu Khanh v. Allegheny Casualty Company, Westfield National Insurance Company, and Andrew Vo</i>, Orange County Superior Court Case Number 30-2026-01539064 and serve this motion on all parties that have appeared in that action, no later than July 10, 2026. The parties shall file and serve any opposition or reply papers pursuant to Civil Procedure Code section 1005(b). <u>Pending Motion</u> Defendants AV Investment & Consultant Group, LLC; Andrew Vo; and Ngoc Dung move to consolidate: • <i>Tran Hung and Cu Khanh vs. AV Investment & Consultant Consolidate Group, LLC; Andrew Vo; and Ngoc Dung</i>, Orange County Superior Court Case Number 30-2024-01404661 (Earlier Action); and • <i>Tran Hung and Cu Khanh v. Allegheny Casualty Company, Westfield National Insurance Company, and Andrew Vo</i>, Orange County Superior Court Case Number 30-2026-01539064 (Later Action). <u>Standard for Consolidation</u> "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions". (Code Civ. Proc., § 1048, subd. (a).) The court may also "order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (<i>Ibid.</i>) California Rules of Court Rule 3.350 sets forth the requirements for a motion to consolidate: (1) A notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;
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		(B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C) Be filed in each case sought to be consolidated. (2) The motion to consolidate: (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and (C) Must have a proof of service filed as part of the motion. (Cal. Rules of Court, rule 3.350(a).) First, Defendants did not comply with rule 3.350(a)(1)(C), which requires that the motion be filed in each case sought to be consolidated and be served on all attorneys or nonrepresented parties in all cases sought to be consolidated. Here, there is no evidence that this motion has been filed in the Later Action or that all of the parties in the Later Action have been served with this motion. Further, while the motion references a declaration from attorney Walter Emil Teague III, no such declaration has been filed with the court. Thus, there is no evidence to support Defendants' arguments that consolidation is appropriate here. Therefore, the court will continue this hearing to allow Defendants to supplement the motion papers and to file and serve the motion papers in the Later Case. Defendants are advised that the court may deny this motion if they fail to supplement the motion
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		papers or fail to serve the motion papers on all parties in the Later Case. Defendants shall give notice of this ruling.
5	Ayasrah vs. Fateh 30-2023-01347912	<u>Motion for Entry of Judgment</u> Plaintiff Rakan Ayasrah's Motion to Enforce Settlement Agreement and Enter Judgment is GRANTED. The court ORDERS that Judgment shall be ENTERED in favor of Plaintiff Rakan Ayasrah and against Defendants Marble Boutique, LLC and Sief Fateh in the amount of \$35,000 plus \$5,000 in reasonable attorney's fees. Plaintiff Rakan Ayasrah is ORDERED to prepare a proposed judgment consistent with this ruling and serve it upon Defendants Marble Boutique, LLC and Sief Fateh and submit it to the court pursuant to Rules of Court rule 3.1590(h). The Court FINDS good cause to allow Plaintiff Rakan Ayasrah 30 days from the date of this ruling to prepare, serve, and submit the proposed judgment. <u>Pending Motion</u> Plaintiff Rakan Ayasrah moves for an order to enter judgment against Defendants Marble Boutique, LLC and Sief Fateh pursuant to the Settlement Agreement dated November 12, 2024. <u>Standard for Entry of Judgment</u> Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) As the Court of Appeal has explained: The purpose of section 664.6 is "to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." "If the court